

Different Sources of the Indian Constitution

Although the skeleton of the constitution was derived from the Government of India Act 1935, many provisions were imported from other constitutions of the world. Some of them are listed below along with the Government of India Act, 1935 :

Government of India Act, 1935 : This Act formed the basis or 'blueprint' of the constitution of India with the features of Federal system, office of Governor, emergency powers etc. Besides, the Constitution of India has borrowed from the—

Constitution of Britain : Law making procedures, Rule of law, Single citizenship, Bicameral Parliamentary system, office of CAG.

Constitution of USA : Independence of judiciary, judicial review, fundamental rights, removal of Supreme Court and High Court judges, Preamble and functions of President and Vice-president.

Constitution of Canada : Federation with strong Centre, to provide residuary powers to the Centre, Supreme Court's advisory jurisdiction.

Constitution of Ireland : Directive Principles of State policy, method of presidential elections, and the nomination of members to Rajya Sabha by the President.

Weimar Constitution of Germany : Provisions concerning the suspension of fundamental rights during emergency.

Constitution of Australia : Idea, of the Concurrent List, Trade and Commerce provisions.

Constitution of South Africa : Amendment with 2/3rd majority in Parliament and election of the Members of Rajya Sabha on the basis of proportional representation.

Constitution of France : Republican System, / Principles of Liberty, Equality and Fraternity.

Constitution of former USSR : Fundamental Duties, Ideals of justice in Preamble.